

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

**DECLARATION OF SUSAN K. ROSS IN SUPPORT OF J&K
FRESH, LLC'S MOTION TO QUASH OR MODIFY SUBPOENA
DUCES TECUM OR IN THE ALTERNATIVE FOR A
PROTECTIVE ORDER**

I, Susan Kohn Ross, declare:

1. I am an attorney duly licensed to practice in the State of California and before the Federal Maritime Commission. I am a partner, through my professional corporation, of the law firm of Mitchell Silberberg & Knupp LLP, attorneys of record for J&K Fresh, LLC ("JKF"). I am the lead attorney representing J&K Fresh, LLC in this matter. I make this declaration in support of JKF's Motion to Quash or Modify the Subpoena Duces Tecum, or in the Alternative, for a Protective Order. I have personal knowledge of the following facts and, if called and sworn as a witness, could and would competently testify thereto.

2. On October 21, 2022, One Banana served a Subpoena Duces Tecum on J&K Fresh, LLC. A true and correct copy of the Subpoena at issue in JKF's motion is attached hereto as **Exhibit A**.

5. Between October 21, 2022 and October 24, 2022, I exchanged emails with One Banana's counsel, Tiffany Compres, regarding the initial defective service of the subpoena and JKF's inability to provide testimony or produce documents regarding any of the information requested in the Subpoena. A true and correct copy of this email exchange is attached hereto as **Exhibit B**.

6. On October 29, 2022, One Banana's counsel and I exchanged emails regarding One Banana's failure to provide the bill of lading and entry numbers and failure to remedy the outstanding issues JKF raised regarding the Subpoena. One Banana's explanation for not providing further details was that settlement discussions were on-going. JKF notified One Banana that it would have to prepare the instant Motion and potentially incur attorney's fees without concurrence to JKF's previous proposals. One Banana did not respond. A true and correct copy of this email exchange is attached hereto as **Exhibit C**.

7. J&K Fresh LLC is licensed as a customs broker by Customs and Border Protection ("CBP"). It is listed as a customs broker by CBP. A true and correct copy of the face page of the list along with the page on which J&K Fresh LLC is listed are attached hereto as **Exhibit D**.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

DATED: October 31, 2022

By:

A handwritten signature in black ink, appearing to read 'Susan Kohn Ross', written over a horizontal line.

Susan Kohn Ross

EXHIBIT A

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

RIDER TO SUBPOENA FOR DEPOSITION DUCES TECUM DIRECTED TO

J&K FRESH, LLC
2101 E EL SEGUNDO BLVD, # 203
EL SEGUNDO, CA 90245
raymond@jkfresh.com

TESTIMONY: YOU ARE COMMANDED to appear at the time, date, and place set forth below to testify upon oral examination at a deposition to be taken in this action. If you are an organization, you must promptly confer in good faith with the party serving this subpoena about the following matters, or those set forth in an attachment, and you must designate one or more officers, directors, or managing agents, or designate other persons who consent to testify on your behalf about these matters pursuant to 46 C.F.R. § 502.143(b)(6):

Place: FisherBroyles LLP Milestone Court Reporting (Zoom link to be provided)	Date and Time: November 7, 2022; 10 am to 2 pm EST
---	---

The deposition will be recorded stenographically and by means of video and audio.

PRODUCTION: You, or your representatives, must also bring with you to the deposition the following documents, electronically stored information, or objects, and must permit inspection, copying, testing, or sampling of the material.

Pursuant to FMC Rule 502.132, you “may move to quash or modify the subpoena within ten (10) days after service of the subpoena, and a reply to such motion shall be served within seven (7) days thereafter.” 46 C.F.R. § 502.132.

DEFINITIONS

1. The term “communication” means the transmittal of information (in the form of facts, ideas, inquiries, or otherwise, and whether verbally or in writing, or otherwise).
2. The term “document” is synonymous in meaning and equal in scope to the usage of the term “documents or electronically stored information” in 46 C.F.R. § 502.146(A)(1)(i). A draft or non-identical copy is a separate document within the meaning of this term.
3. When referring to a person, “to identify” means to give, to the extent known, the person’s full name, present or last known address, telephone number, and email address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this paragraph, only the full name of that person need be listed in response to subsequent discovery requesting the identification of that person.
4. When referring to documents, “to identify” means to give, to the extent known, the (i) type of document; (ii) general subject matter; (iii) date of the document; and (iv) author(s), addressee(s) and recipient(s).
5. The term “person” is defined as any natural person or any legal entity, including, without limitation, any business or governmental entity or association.
6. The term “concerning” means relating to, referring to, with respect to, with regard to, describing, evidencing, or constituting.
7. The terms “You” and “Your” means J&K FRESH, LLC and all parents, subsidiaries, owners, shareholders, affiliates, predecessors, successors, members, partners, joint venture partners, officers, directors, executives, managers, employees, crew, agents, charterers, representatives, attorneys, experts, investigators and insurers of J&K FRESH, LLC.
8. The term “OBNA Containers” means containers identified in Appendix A.
9. The term “LALB” means the ports of Los Angeles and Long Beach collectively.
10. The term “HL” refers to Hapag Lloyd AG, its affiliates and agents, and all parents, subsidiaries, owners, shareholders, affiliates, predecessors, successors, members, partners, joint venture partners, officers, directors, executives, managers, employees, crew, agents, charterers, representatives, attorneys, experts, investigators and insurers of Hapag Lloyd AG.

INSTRUCTIONS FOR PRODUCTION OF DOCUMENTS

1. Unless otherwise specified, these Subpoena seeks documents, communications, and/or information from September 1, 2021 through December 15, 2021 (inclusive).
2. The following rules of construction also apply to all Discovery Requests:

- a. The terms “all,” “any,” and “each” shall each be construed as encompassing any and all.
- b. The connectives “and” and “or” shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.
- c. The use of the singular form of any word includes the plural and vice versa.
- d. The masculine gender of any word used herein includes the feminine, and vice versa.
- e. The word “including” shall mean “including without limitation.”
- f. The use of a verb in any tense, mood, or voice shall be construed as the use of the verb in all tenses, moods, or voices, as necessary to bring within the scope of a Discovery Request all information that might otherwise be construed to be outside of its scope.

3. All electronically stored information (“ESI”) responsive to these Discovery Requests shall be produced both in native format and as sequentially Bates numbered single-page images (black and white TIF files for ESI files that originally appeared in black and white and color JPG files for ESI files that originally contained color), except for Excel worksheets and any other ESI files that are unreadable as TIF files, which shall be produced in native format with placeholder TIF files. Each native-format ESI file produced shall be named per the Bates number of the first page of the corresponding TIF or JPG image(s) for that ESI file (i.e., its “BegNo”). Document-level extracted text or optical character recognition (“OCR”) text shall be provided for each ESI file produced, also named per the ESI file’s production BegNo. Concordance load files containing at least the following metadata for each ESI file produced shall be included with the production: BegNo, EndNo, BegAttach, EndAttach, PgCount, Custodian, From, To, Cc, Bcc, Email Subject, Date Sent, Date Received, Time Sent, Time Received, File Extension, Author, Company, Date Created, Date Last Modified, File Name, Original File Path, File Size, and MD5 Hash.

4. If You consider any document, communication, and/or information requested by any of these Discovery Requests to be subject to withholding from production due to the attorney- client privilege, the attorney work product doctrine, any joint defense or common interest privilege, or any other privilege, then Plaintiff requests that You provide for each such document, communication, and/or piece of information identifying information sufficient to show for each document the author(s)/sender(s), recipient(s), date(s), subject line or title, and description of the privilege that You contend applies.

MATTERS OF ORAL EXAMINATION

1. Demurrage, detention or any other charges imposed or anticipated to be imposed by any party in connection with OBNA Containers.
2. Your ability or inability to obtain appointments for the pick-up of the loaded OBNA Containers or return of empty OBNA Containers.
3. Your ability or inability to obtain appointments for the pick-up of HL's loaded containers or return of empty containers in LALB in 2020.
4. Shut-out or shut out days at the terminal as pertains to the pick up or return the OBNA Containers.
5. The practice of dual appointments pursuant to which you were required to or de-facto forced to return an empty container at the same time as picking up a loaded container as pertains to OBNA Containers.
6. The practice of dual appointments pursuant to which you were required to or de-facto forced to return an empty container at the same time as picking up a loaded container as pertains to containers delivered by HL.
7. Any delays of any nature in connection with picking up or returning the OBNA containers.
8. Your offered rates or quotes for picking up OBNA Containers.

REQUESTS FOR PRODUCTION

1. All documents and communications with or among any persons, other than OBNA, including documents and communications within Your organization, concerning the OBNA Containers that arrived at LALB on the following vessels during the specified time period.

- Long Beach Express 01W29
- Cap Jervis 127W
- Balao V311W
- Dallas Express 18W31
- Rotterdam Express 01W32
- Tokyo Express 19W33
- Fos Express 02W35
- Seattle Express 02W36
- NYK Maria 613W
- Kobe Express 21W38

that relate to:

- (a) demurrage, detention or any other charges imposed or potentially imposed by any party in connection with OBNA Containers;
- (b) Your ability or inability to obtain appointments for the pick-up of the loaded OBNA Container or return of empty OBNA Containers;
- (c) any shut-out or shut out days at the terminal;
- (d) the HL practice of dual appointments pursuant to which you were required to or de-facto forced to return an empty container at the same time as picking up a loaded container; and
- (e) any delays of any nature in connection with picking up or returning the OBNA Containers.


Erin M. Wirth
Chief Administrative Law Judge

APPENDIX A

OBNA CONTAINERS

1. BMOU9211984
2. FSCU5668990
3. GESU9484240
4. HLBU9001487
5. HLBU9093884
6. HLBU9103128
7. HLBU9002138
8. HLXU8749213
9. HLXU8751798
10. LNXU9657486
11. SEGU9102506
12. SEGU9116731
13. TCLU1184554
14. TCLU1317596
15. UACU4737647
16. UACU4779621
17. BMOU9765219
18. BMOU9767320
19. CRLU1297764
20. CXRU1350800
21. GESU9385459
22. GESU9482119
23. GESU9502684
24. HLBU9004418
25. HLBU9130015
26. HLBU9388340
27. HLBU9455324
28. HLBU9503510
29. HLBU9605928
30. TCLU1122850
31. UACU4728780
32. UACU4729214
33. UACU4737971
34. BMOU9700603
35. HLBU9171903
36. HLBU9243916
37. HLBU9244492
38. HLBU9264740
39. HLBU9269757
40. HLBU9428859
41. HLBU9494676
42. HLXU8711861
43. BMOU9802462
44. HLBU9047600

45.	HLBU9316294
46.	HLBU9598475
47.	HLXU8750554
48.	HLXU8755957
49.	TEMU9054894
50.	UACU4777090
51.	BMOU9221283
52.	CPSU5107458
53.	CPSU5145648
54.	CRLU1273839
55.	CRLU1377031
56.	CRLU7270919
57.	GESU9349451
58.	HLBU9006107
59.	HLBU9039693
60.	HLBU9113194
61.	HLBU9261720
62.	HLBU9318743
63.	HLBU9383522
64.	HLBU9445497
65.	HLBU9514643
66.	HLXU8723076
67.	HLXU8736582
68.	HLXU8738245
69.	HLXU8739452
70.	HLXU8745516
71.	HLXU8759485
72.	HLXU8761420
73.	HLXU8761693
74.	LN XU7552017
75.	TCLU1039155
76.	TCLU1121710
77.	TCLU1128817
78.	UAEU1237049
79.	BMOU9212300
80.	BMOU9217257
81.	BMOU9218490
82.	CSVU7503632
83.	HLBU9181917
84.	HLBU9268262
85.	HLBU9442414
86.	HLBU9500125
87.	HLBU9705932
88.	HLXU8747191
89.	HLXU8773077
90.	HLXU8789746

91.	SEGU9420791
92.	TCLU1020864
93.	TEMU9231182
94.	HLBU9084624
95.	HLBU9422568
96.	HLBU9625776
97.	LN XU9655101
98.	TEMU9839737
99.	UACU4759517
100.	HLBU9246540
101.	HLBU9414433
102.	HLBU9434316
103.	HLBU9399597
104.	HLBU9555088

EXHIBIT B

From: [Ross, Susan K.](#)
To: "Tiffany Compres"
Cc: [Gene Burd](#); [Yine Rodríguez Pérez](#); [George, Chloe](#)
Bcc: ["J_K Fresh LLC One Banana SDT re FMC Proceeding_41829_00009_E_Mails"](#)
Subject: One Banana v. Hapag Lloyd
Date: Monday, October 24, 2022 12:04:02 PM
Attachments: [image002.gif](#)

Tiffany,

Thanks re the B/L numbers. As to the emails, my understanding is the trucker was copied on all the emails so telling me you have 67 emails (or more) doesn't really address the relevant topic. J&K copied the trucker on all the emails so they would know what was going on with the individual shipments and when they were cleared.

Yes, service was finally effected on Friday and we are preparing objections.

Regards,

Su



Susan Kohn Ross | Partner, through her professional corporation

Regulatory Practice Chair | Cybersecurity and Privacy Practice Chair | Reopen Practice Co-Chair

T: 310.312.3206 | C: 310.613.9934 | skr@msk.com

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2049 Century Park East, 18th Floor, Los Angeles, CA 90067

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From: Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Sent: Monday, October 24, 2022 12:00 PM

To: Ross, Susan K. <skr@msk.com>

Cc: Gene Burd <Gene.Burd@FisherBroyles.com>; Yine Rodríguez Pérez <Yine.RodriguezPerez@FisherBroyles.com>

Subject: [EXTERNAL] RE: [External Sender]One Banana v. Hapag Lloyd

-EXTERNAL MESSAGE-

Dear Susan,

Your client has now been served.

We have over 67 emails with your client regarding the trucking/movement of these shipments. We can send you BL numbers, that is not a problem. We will put that together for you and send it over.

Kind regards,

Tiffany N. Comprés, LL.M., FCIArb

Partner

Board Certified in International Arbitration & Litigation

Board Certified in International Law

FisherBroyles, LLP

1221 Brickell Avenue Suite 900 | Miami FL 33131 | USA

direct: +1.305.342.2957

tiffany.compres@fisherbroyles.com

www.fisherbroyles.com

ATLANTA | AUSTIN | BOSTON | CHARLOTTE | CHICAGO | CINCINNATI | CLEVELAND | COLUMBUS |
DALLAS | DENVER | DETROIT | HOUSTON | LONDON | LOS ANGELES | MIAMI | NAPLES | NEW
YORK | PALO ALTO | PHILADELPHIA | PRINCETON | SALT LAKE CITY | SEATTLE | WASHINGTON,
DC | WILMINGTON

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From: Ross, Susan K. <skr@msk.com>

Sent: Friday, October 21, 2022 5:57 PM

To: Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Cc: Gene Burd <Gene.Burd@FisherBroyles.com>; Yine Rodríguez Pérez
<Yine.RodriguezPerez@FisherBroyles.com>

Subject: RE: [External Sender]One Banana v. Hapag Lloyd

Tiffany,

Their only involvement may have been in issuing the delivery orders. That does not make them involved in the negotiations with the terminals to arrange release or pick up of shipments. If you have emails showing something different, then it would make sense for you to share those emails now so we may clarify their role.

At this point, if you are not prepared to work with us, then we invite you to properly serve the discovery request and we will file appropriate objections.

Just to give you a sense of one ground for our objections, J&K Fresh LLC cannot identify shipments based on container numbers without doing hours of manual work, which is neither reasonable nor appropriate. That is not how they track shipments. So, if you insist on proceeding, we ask that you revise the discovery request to list either entry numbers or bill of lading numbers.

Regards,

Su



**Susan Kohn Ross | Partner, through her professional corporation
Regulatory Practice Chair | Cybersecurity and Privacy Practice Chair | Reopen Practice Co-Chair**

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From: Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Sent: Friday, October 21, 2022 12:36 PM

To: Ross, Susan K. <skr@msk.com>

Cc: Gene Burd <Gene.Burd@FisherBroyles.com>; Yine Rodríguez Pérez
<Yine.RodriguezPerez@FisherBroyles.com>

Subject: [EXTERNAL] RE: [External Sender]One Banana v. Hapag Lloyd

-EXTERNAL MESSAGE-

Susan, we have a number of emails showing FKF was involved in the trucking portion of the shipment. Accordingly, we will either serve the subpoena or you can accept service.

Kind regards,

Tiffany N. Comprés, LL.M., FCIArb

Partner

Board Certified in International Arbitration & Litigation

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YORK | PALO ALTO | PHILADELPHIA | PRINCETON | SALT LAKE CITY | SEATTLE | WASHINGTON,
DC | WILMINGTON

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From: Ross, Susan K. <skr@msk.com>

Sent: Friday, October 21, 2022 3:12 PM

To: Tiffany Compres <Tiffany.Compres@FisherBroyles.com>; Gene Burd
<Gene.Burd@FisherBroyles.com>

Subject: [External Sender]One Banana v. Hapag Lloyd

Ms. Compres and Mr. Burd,

We are the attorneys for J&K Fresh LLC ("JKF"). As a starting point, your process server left a copy of the Subpoena for Deposition Duces Tecum outside an office from which the company moved about a year ago. Rather than check publicly available sources, it appears an attempt was made to effect service at the home of the president of the company. While service was not properly made at either location, we do have a copy of the discovery request.

Our purpose in contacting you at this time, beside pointing out the defective service, is to let you know that our client has none of the information or documents requested. JKF is a customs broker. Its only role with any import shipments for One Banana was to facilitate their release by Customs and Border Protection and the Food and Drug Administration. One Banana hired its own trucker who dealt with the terminals at which the arriving goods were located. The only role JKF played with regard to any demurrage, detention or similar charges was to obtain One Banana's pre-approval and then pay the approved amounts and bill One Banana for reimbursement. JKF had no dealings with the terminals seeking to arrange the pickup of any shipments. JKF also had nothing to do with the delivery of any of the import shipments.

The long and short of the situation is there is no point to requiring anyone from JKF to appear at a deposition as the company has no relevant information to provide. If you would like an affidavit to that effect, feel free to let us know. Otherwise, please cancel the deposition as currently set.

Should you wish to discuss the matter further, feel free to contact me at 310-613-9934.

Regards,

Su Ross



Susan Kohn Ross | Partner, through her professional corporation

Regulatory Practice Chair | Cybersecurity and Privacy Practice Chair | Reopen Practice Co-Chair

T: 310.312.3206 | C: 310.613.9934 | skr@msk.com

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EXHIBIT C

From: [Ross, Susan K.](#)
To: ["Tiffany Compres"](#)
Cc: [Gene Burd](#); [Yine Rodríguez Pérez](#); [George, Chloe](#)
Bcc: ["J_K Fresh_LLC_One Banana SDT re FMC Proceeding_41829_00009_E_Mails"](#)
Subject: RE: One Banana v Hapag Lloyd
Date: Saturday, October 29, 2022 2:51:31 PM
Attachments: [image001.gif](#)

Tiffany,

Noted thanks. Glad to hear there are settlement discussions, but if we have to wait until Monday to get your concurrence to what we have proposed, that means we will have to complete our Motion to Quash, etc., and that means J&K Fresh LLC will potentially have incurred unnecessary attorneys' fees.

Please respond to the first email soonest.

Thanks,

Su



Susan Kohn Ross | Partner, through her professional corporation

Regulatory Practice Chair | **Cybersecurity and Privacy Practice Chair** | **Reopen Practice Co-Chair**

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From: Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Sent: Saturday, October 29, 2022 12:54 PM

To: Ross, Susan K. <skr@msk.com>

Cc: Gene Burd <Gene.Burd@FisherBroyles.com>; Yine Rodríguez Pérez <Yine.RodriguezPerez@FisherBroyles.com>; George, Chloe <c2g@msk.com>

Subject: [EXTERNAL] Re: One Banana v Hapag Lloyd

-EXTERNAL MESSAGE-

Totally ok RE PO. There is already one in place for the case.

More on Monday. Settlement discussions under way.

Tiffany N. Comprés, Esq., LL.M., FCI Arb
Partner

Board Certified in International Law
Board Certified in International Arbitration & Litigation

FisherBroyles, LLP
1221 Brickell Avenue Suite 900 | Miami, Florida 33131 | USA
direct: +1.305.342.2957
tiffany.compres@fisherbroyles.com

De : Ross, Susan K. <skr@msk.com>
Envoyé : Saturday, October 29, 2022 2:12:41 PM
À : Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Cc : Gene Burd <Gene.Burd@FisherBroyles.com>; Yine Rodríguez Pérez
<Yine.RodriguezPerez@FisherBroyles.com>; George, Chloe <c2g@msk.com>
Objet : RE: One Banana v Hapag Lloyd

Tiffany,

One more issue - will you stipulate to a protective order?
Given the nature and extent of the documents requested, there may be some J&K Fresh documents which contain business proprietary information (such as rates) and so should be dealt with pursuant to a protective order.

Regards,

Su



Susan Kohn Ross | Partner, through her professional corporation
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From: Ross, Susan K.
Sent: Friday, October 28, 2022 2:59 PM
To: 'Tiffany Compres' <Tiffany.Compres@FisherBroyles.com>
Cc: Gene Burd <Gene.Burd@FisherBroyles.com>; Yine Rodríguez Pérez
<Yine.RodriguezPerez@FisherBroyles.com>; George, Chloe <c2g@msk.com>
Subject: One Banana v Hapag Lloyd

Tiffany,

Before we file anything with the FMC, I wanted to alert you to

the fact we have a number of concerns regarding the SDT which was recently served on J&K Fresh.

- 1) The time for the deposition is set at 10:00 am. EDT which is 7:00 a.m. PDT, and so is outside regular business hours.
- 2) The FMC rules at 502.132(c) require the SDT be served at least 20 days prior to the deposition. The request was served on October 24th. The scheduled date is November 7. In short, the required timing has not been met.
- 3) As you know, J&K Fresh is a customs broker. As such, it is not able to identify the listed shipments without either the bill of lading or entry numbers. You have assured us the list of bill of lading numbers will be provided. We do not yet have it. Given there are over 100 shipments where you are demanding records, there is not enough time to pull those records, insure the responses are complete and have those files ready by November 7th, even assuming the 20 day deadline had been met, we the deposition date will need to be extended.
- 4) Finally, for now, the way the request is worded, we cannot tell whether One Banana is requiring that Raymond Keffer testify or whether it should designate a Custodian of the Records to testify.

Please clarify on these points soonest so that it is clear whether we must notify the FMC by way of a motion to quash regarding these issues.

Regards,

Su



Susan Kohn Ross | Partner, through her professional corporation

Regulatory Practice Chair | Cybersecurity and Privacy Practice Chair | Reopen Practice Co-Chair

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EXHIBIT D

Entry Filer Code List

Sorted by Filer Name

19 CFR 142a(c)

February 4, 2021



**U.S. Customs and
Border Protection**

HE3	ITM, INC
BJS	ITOCHU BUILDING PRODUCTS CO, INC.
WDW	ITOCHU INTERNATIONAL
EK8	ITOCHU LOGISTICS(USA) CORP.
92T	ITR AMERICA, LLC
HQ5	ITS ENGINEERED SYSTEMS INC
P86	ITT AIMCO DIVISION
9M5	ITT FORWARDING, INC.
WTC	ITX CORPORATION - CLEVELAND GRANITE
82D	IVAN KIN WAI CHUNG
E5H	IVAN MIRANDA
G80	IVETTE C TORNER
9B6	IVOT ADAMU
WQC	IVONNE C. SOLA
BVU	IVY CUSTOMS SERVICES, INC.
9PG	IWAKI AMERICA INCORPORATED
9BW	IWAN SIMONIS, INC.
WMO	J & A LEATHERS INC.
807	J & A SHIPPING CO
AFA	J & B CUSTOMHOUSE BROKER INC
WSM	J & B CUSTOMS BROKERS
HB8	J & B EUROPEAN DISTRIBUTION, INC.
U28	J & J BROKERAGE
WI8	J & J FINE ARTS FORWARDING & SHIPPI
WTY	J & J TRADING COMPANY
NM2	J & K FRESH, LLC
8QH	J & S CUSTOMS BROKERS INC
RT1	J ARON & COMPANY
423	J CABELLO CRUZ
WAB	J CLOUD, INC.
462	J CORTINA INC
WNR	J CREW GROUP, INC.
FH9	J HEWITT, INC.
640	J KLEIN CO
WPM	J KLEINHAUS & SONS, INC.
WAA	J LAURITZEN (USA) INC.
SN5	J ROBERT JOHNSON
BV6	J STANLEY CO
QM7	J&A LEATHERS, INC.
CJ7	J&B DISTRIBUTION CO.
RD7	J&B DISTRIBUTION CO.
EAN	J&B IMPORTERS, INC.
8WH	J&J CUSTOMS BROKERS, INC

CERTIFICATE OF SERVICE

I hereby certify that on October 31, 2022, the foregoing
**DECLARATION OF SUSAN K. ROSS IN SUPPORT OF J&K
FRESH, LLC'S MOTION TO QUASH OR MODIFY SUBPOENA
DUCES TECUM OR IN THE ALTERNATIVE FOR A
PROTECTIVE ORDER** has been served upon all interested persons and
parties by electronic means pursuant to the below list.

Executed in Rialto, California, October 31, 2022.

/s/ Bertha A. García-Stone
Bertha A. García-Stone

Presiding Administrative Law Judge Erin M. Wirth, Chief Administrative Law Judge Office of Administrative Law Judges Federal Maritime Commission 800 N. Capitol St., N.W. Washington D.C. 20573-0001 judges@fmc.gov	Office of the Secretary Federal Maritime Commission 800 N. Capitol St., N.W. Washington D.C. 20573-0001 secretary@fmc.gov
Counsel for Respondents Hapag- Lloyd, A.G., and Hapag-Lloyd (America) LLC Wayne R. Rohde Joshua P. Stein COZEN O'CONNOR 1200 Nineteenth Street, NW, Suite 300 Washington, DC 20036 Telephone: (202) 463-2504 Emails: wrohde@cozen.com ; jstein@cozen.com	Counsel for One Banana North America Corp. Tiffany N. Compres Fisher Broyles, LLP 1221 Brickell Ave., Suite 900 Miami, FL 33131 Tiffany.compres@fisherbroyles.com
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